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AS AMENDED

By: Stewart

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[ county purchasing - county purchasing agent -
exceptions - effective date ]
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SECTION 1. AMENDATORY 19 O.S. 2021, Section 1501, as amended by Section 1, Chapter 94, O.S.L. 2022 (19 O.S. Supp. 2024, Section 1501), is amended to read as follows:

1. Shall, within the amount of the unencumbered balance, make all purchases that are paid from county funds for the various institutions, departments, officers, and employees of the county, except at public auctions and as otherwise provided for by law;

3. Shall make purchases and rental or lease-purchase agreements only after following the bidding procedures as provided for by law, except:

- 1 a. when the purchase does not exceed Twenty-five Thousand
2 Dollars (\$25,000.00) by department. All purchases
3 made pursuant to this subparagraph shall be by a
4 single purchase order. Splitting purchase orders
5 which would result in paying an amount in excess of
6 the limitations specified in this subparagraph is
7 expressly prohibited. Any person convicted of
8 violating the provisions of this subparagraph shall be
9 guilty of a misdemeanor and such person shall forfeit
10 the person's position or office,
- 11 b. when the total payments of a rental or lease-purchase
12 agreement do not exceed the current bid limit as
13 established in subparagraph a of this paragraph,
- 14 c. when articles and items are covered by single-source
15 contracts,
- 16 d. service or maintenance contracts on equipment or
17 machinery which are entered into at the time of the
18 purchase of the equipment or machinery,
- 19 e. purchases made pursuant to a blanket purchase order as
20 provided for in Section 310.8 of Title 62 of the
21 Oklahoma Statutes,
- 22 f. when materials for road or bridge improvements do not
23 exceed Seven Dollars (\$7.00) per yard or per ton,
- 24

- 1 g. purchases of fuel if the county purchasing agent
2 obtains quotes from at least three vendors prior to
3 the purchase and the lowest and best quote is
4 selected. Documentation of these quotes shall be
5 recorded in the permanent records of the clerk,
- 6 h. purchases of tools, apparatus, machinery, or equipment
7 from a state agency or a political subdivision of the
8 state as provided for in subsection C of Section 421.1
9 of this title,
- 10 i. purchases of food for prisoners incarcerated in the
11 county jail; provided, in counties having a population
12 in excess of one hundred thousand (100,000) persons,
13 the county purchasing agent shall follow bidding
14 procedures as provided by law unless the county
15 purchasing agent obtains quotes pursuant to the whole
16 total of food items requisitioned prior to the
17 purchase and the lowest and best quote is selected.
18 Documentation of these quotes shall be recorded in the
19 permanent records of the county clerk,
- 20 j. when a county solicits bids for the purchase of
21 processed native materials for road and bridge
22 improvements, the county may accept all bids received,
23 with the lowest and best bid from those accepted to be
24 selected at the time of opening of any construction

1 project. The selection of the bid shall be based upon
2 availability, bid price, ~~plus~~ and transportation
3 costs,

4 k. when a vendor has been selected as the lowest and best
5 bidder to furnish a particular item or items to the
6 county during a specified time period and in the event
7 the vendor is unable to perform, the purchasing agent
8 may **solicit telephone quotes for the item or items**
9 **needed** or select the next lowest and best bidder from
10 the list of qualified bidders and provide for the
11 purchase of the items at the lowest and best quote
12 available. All vendors submitting bids for the
13 specific product or service will be considered at or
14 below the amount they bid,

15 l. when considering the purchase of an item or items from
16 the state bid list as provided by the Office of
17 Management and Enterprise Services or the General
18 Services Administration, if the same exact item is
19 available from a local vendor at or below the price
20 listed on the state bid list or the General Services
21 Administration list, the item may be obtained from the
22 vendor,

23 m. any item or items bid by the Office of Management and
24 Enterprise Services which may be purchased by the

- 1 county, provided the vendor is willing to supply the
2 item or items to the county at the bid price,
- 3 n. when a county obtains proceeds from the sale of its
4 property at a public auction, that county may use
5 those proceeds to acquire items previously identified
6 as needed by the county at the same public auction
7 pursuant to subsection D of Section 1505 of this
8 title,
- 9 o. when an item or items have been competitively bid by a
10 county, or on behalf of a group of counties, provided:
- 11 (1) the notice to bidders shall list each county
12 which may participate in the purchase of the item
13 or items being bid,
- 14 (2) the notice of bid is advertised, as provided by
15 law, in each of the counties which may
16 participate in the purchase of the item or items,
- 17 (3) all vendors on the list of qualified bidders of
18 each participating county who offer the item or
19 items for sale received notice of the bid
20 request, and
- 21 (4) the vendor awarded the bid is willing and able to
22 provide the item or items at the bid price,
- 23 p. counties may participate in a nationwide purchasing
24 program sponsored by the national association

1 representing counties and local cooperative
2 procurement agreements entered into by the counties
3 and other local jurisdictions or any other
4 competitively bid nationwide purchasing program, or
5 q. when the Governor declares an emergency in a county,
6 the district attorney of that county shall have the
7 authority to temporarily waive competitive bidding
8 procedures for purchases that may expedite a response
9 to the emergency situation. This temporary waiver
10 shall be in addition to any powers exercised pursuant
11 to Section 683.11 of Title 63 of the Oklahoma
12 Statutes.

13 The purchases shall be paid by attaching properly itemized
14 invoices, as described in Section 1505 of this title, to a purchase
15 order which has been prepared by the county purchasing agent and
16 submitting both to the county clerk for filing, encumbering, and
17 consideration for payment by the board of county commissioners;

18 4. Shall not furnish any supplies, materials, equipment, or
19 other articles, except upon receipt of a requisition signed by a
20 county officer. Written requisitions will not be required for
21 blanket purchase orders as provided for in Section 310.8 of Title 62
22 of the Oklahoma Statutes. Each county officer may designate not
23 more than two employees who also shall be authorized to sign
24 requisitions in the absence of the county officer. A written

1 designation of the employees shall be filed with the county clerk
2 and shall be entered in the minutes of the board of county
3 commissioners. The county may designate two individuals who are not
4 county employees for each of the following entities within the
5 county to act as receiving and requisitioning officers:

6 a. fire protection districts organized and operated
7 pursuant to the provisions of Sections 901.1 through
8 901.29 of this title,

9 b. fire protection services established pursuant to the
10 provisions of Section 351 of this title,

11 c. volunteer or full-time fire departments established
12 pursuant to Section 592 of Title 18 of the Oklahoma
13 Statutes, and

14 d. municipal fire departments organized and operated
15 pursuant to the provisions of Sections 29-101 through
16 ~~29-108 and Sections 29-201 through 29-204~~ 29-115 of
17 Title 11 of the Oklahoma Statutes.

18 A written designation of these individuals shall be filed with
19 the county clerk and shall be entered in the minutes of the board of
20 county commissioners meeting in which the designations are made.

21 Further, entities described in subparagraphs a, b, c, and d of this
22 paragraph, choosing to have any nonemployee of the county designated
23 as a receiving and requisitioning officer shall provide evidence of
24

1 blanket bond coverage or employee dishonesty liability insurance for
2 each such designee;

3 5. Shall make lease or lease-purchase agreements for road
4 machinery and equipment if the county has adequate funds
5 appropriated during any fiscal year for such purpose and only after
6 following the bidding procedures as provided for in Section 1505 of
7 this title. The term of any lease or lease-purchase agreement
8 authorized pursuant to this paragraph may be for any period up to
9 one (1) year; provided, the term shall not extend beyond the end of
10 any fiscal year, with an option to renew such agreement subject to
11 the requirement that adequate funds are appropriated during the
12 fiscal year by the county for such purpose. The Office of the State
13 Auditor and ~~Inspector's Office~~ Inspector shall be notified by the
14 county of the terms and conditions of a lease or lease-purchase
15 agreement authorized pursuant to this paragraph before any such
16 agreement is made by the county purchasing agent; and

17 6. Shall perform such other duties as may be delegated by the
18 appointing authority or as may be provided for by law.

19 B. Each department of county government needing repairs to
20 equipment, machinery, or vehicles shall make estimates and
21 requisition a purchase order from the county purchasing agent for
22 repairs not in excess of Ten Thousand Dollars (\$10,000.00). Repairs
23 in excess of Ten Thousand Dollars (\$10,000.00) shall be submitted on
24

1 a blanket purchase order as provided in Section 310.8 of Title 62 of
2 the Oklahoma Statutes.

3 C. Each department of county government needing repairs to
4 heavy equipment, meaning equipment in excess of ten thousand
5 (10,000) pounds, shall make estimates and requisition a purchase
6 order from the county purchasing agent for repairs not in excess of
7 Thirty Thousand Dollars (\$30,000.00). Repairs in excess of Thirty
8 Thousand Dollars (\$30,000.00) shall be submitted on a blanket
9 purchase order as provided in Section 310.8 of Title 62 of the
10 Oklahoma Statutes.

11 SECTION 2. AMENDATORY 19 O.S. 2021, Section 1505, as
12 amended by Section 3, Chapter 94, O.S.L. 2022 (19 O.S. Supp. 2024,
13 Section 1505), is amended to read as follows:

14 Section 1505. The following procedures shall be used by
15 counties for the requisition, purchase, lease-purchase, rental, and
16 receipt of supplies, materials, road and bridge construction
17 services, equipment ~~and information technology and telecommunication~~
18 ~~goods,~~ and other services, except for professional services as
19 defined in Section 803 of Title 18 of the Oklahoma Statutes, for the
20 maintenance, operation, and capital expenditures of county
21 government unless otherwise provided for by law.

22 A. The procedure for requisitioning items for county offices
23 shall be as follows:

1 1. The requesting department shall prepare a requisition form
2 in triplicate. The requisition shall contain any specifications for
3 an item as deemed necessary by the requesting department. The form
4 shall be prescribed by the State Auditor and Inspector;

5 2. The requesting department shall retain a copy of the
6 requisition and forward the original requisition and a copy to the
7 county purchasing agent; and

8 3. Upon receipt of the requisition, the county purchasing
9 agent, within two (2) working days, shall begin the bidding and
10 purchasing process as provided for in this section. Nothing in this
11 section shall prohibit the transfer of supplies, materials, or
12 equipment between county departments upon a written agreement
13 between county officers.

14 B. The bid procedure for selecting a vendor for the purchase,
15 lease-purchase, or rental of supplies, materials, equipment, and
16 ~~information technology and telecommunication goods and services~~ used
17 by a county shall be as follows:

18 1. The county purchasing agent shall request written
19 recommendations from all county officers pertaining to needed or
20 commonly used supplies, materials, road and bridge construction
21 services, equipment, ~~and information technology and~~
22 ~~telecommunication goods and services~~. From such recommendations and
23 available requisition, purchase, or inventory records, the county
24 purchasing agent shall prepare a list of items needed or commonly

1 used by county officers. The county purchasing agent shall request
2 from the Purchasing Division or from the Information Services
3 Division in the case of information technology and telecommunication
4 goods and services of the Office of Management and Enterprise
5 Services all contracts quoting the price the state is paying for the
6 items. The county purchasing agent shall either request the
7 Purchasing Division or the Information Services Division of the
8 Office of Management and Enterprise Services, as applicable, to make
9 the purchase for the county or the county purchasing agent shall
10 solicit bids for unit prices on the items for periods of not to
11 exceed twelve (12) months in the manner described in paragraph 2 of
12 this subsection. If the county purchasing agent receives a
13 requisition for an item for which the county purchasing agent does
14 not have a current bid, the county purchasing agent shall request
15 from the Purchasing Division or the Information Services Division of
16 the Office of Management and Enterprise Services, as applicable, all
17 contracts quoting the price the state is paying for the item. The
18 county purchasing agent shall either request the Purchasing Division
19 or the Information Services Division of the Office of Management and
20 Enterprise Services, as applicable, to make the purchase for the
21 county or the county purchasing agent shall solicit bids in the
22 manner described in paragraph 2 of this subsection. Nothing in this
23 paragraph shall prohibit bids from being taken on an item currently
24 on a twelve-month bid list, at any time deemed necessary by the

1 county purchasing agent. Whenever the county purchasing agent deems
2 it necessary to take a bid on an item currently on a twelve-month
3 bid list, the reason for the bid shall be entered into the minutes
4 of the board of county commissioners;

5 2. Bids shall be solicited by mailing or emailing a notice to
6 all persons or firms who have made a written request of the county
7 purchasing agent that they be notified of such bid solicitation and
8 to all other persons or firms who might reasonably be expected to
9 submit bids. Notice of solicitation of bids shall also be published
10 one time in a newspaper of general circulation in the county.

11 Notices shall be mailed and published at least ten (10) days prior
12 to the date on which the bids are opened. Proof of the mailing or
13 emailing shall be made by the affidavit of the person mailing or
14 emailing the request for bids and shall be made a part of the
15 official records of the county purchasing agent. The notice shall
16 specify whether the county will consider written bids, electronic
17 bids, or both; the decision to exclusively consider either written
18 bids or electronic bids shall be determined pursuant to an
19 affirmative vote of the board of county commissioners. Whenever any
20 prospective supplier or vendor dealing in or listing for sale any
21 particular item or article required to be purchased or acquired by
22 sealed bids fails to enter or offer a sealed bid for three
23 successive bid solicitations, the name of the supplier or vendor may
24

1 be dropped from the mailing lists of the board of county
2 commissioners;

3 3. The sealed bids received from vendors and the state contract
4 price received from the applicable ~~Division~~ division of the Office
5 of Management and Enterprise Services shall be given to the county
6 clerk by the county purchasing agent. The county clerk shall
7 forward the sealed bids and state contract price, if any, to the
8 board of county commissioners;

9 4. The board of county commissioners, in an open meeting, shall
10 open the sealed bids and compare them to the state contract price.
11 The board of county commissioners shall select the lowest and best
12 bid based upon, if applicable, the availability of material and
13 transportation cost to the job site within thirty (30) days of the
14 meeting. For any special item not included on the list of needed or
15 commonly used items, the requisitioning official shall review the
16 bids and submit a written recommendation to the board before final
17 approval. The board of county commissioners shall keep a written
18 record of the meeting as required by law, and any time the lowest
19 bid was not considered to be the lowest and best bid, the reason for
20 such conclusion shall be recorded. Whenever the board of county
21 commissioners rejects the written recommendation of the
22 requisitioning official pertaining to a special item, the reasons
23 for the rejection shall be entered in their minutes and stated in a
24 letter to the requisitioning official and county purchasing agent;

1 5. The county purchasing agent shall notify the successful
2 bidders and shall maintain a copy of the notification. The county
3 purchasing agent shall prepare and maintain a vendors list
4 specifying the successful bidders and shall notify each county
5 officer of the list. The county purchasing agent may remove any
6 vendor from such list who refuses to provide goods or services as
7 provided by contract if the removal is authorized by the board of
8 county commissioners. The county purchasing agent may make
9 purchases from the ~~successful~~ remaining bidders for a price at or
10 below the bid price. ~~If a vendor who is the low bidder cannot or~~
11 ~~will not sell goods or services as required by a county bid~~
12 ~~contract, the county purchasing agent may make a one-time purchase~~
13 ~~from the next lowest or best quote or take quotations as provided in~~
14 ~~paragraph 6 of this subsection; provided, however, such purchase~~
15 ~~does not exceed Twenty-five Thousand Dollars (\$25,000.00) as the~~
16 ~~amount specified in subparagraph a of paragraph 3 of subsection A of~~
17 ~~Section 1501 of this title; and~~

18 6. When bids have been solicited as provided for by law and no
19 bids have been received, the procedure shall be as follows:

- 20 a. the county purchasing agent shall determine if
21 potential vendors are willing to commit to a firm
22 price for a reduced period of time, and, if such is
23 the case, the bid procedure described in this
24 subsection shall be followed,

- b. if vendors are not willing to commit to a firm price for a reduced period, the purchasing agent shall solicit and record at least three quotes of current prices available to the county and authorize the purchase of goods or services based on the lowest and best quote as it becomes necessary to acquire such goods or services. The quotes shall be recorded on a form prescribed by the State Auditor and Inspector and shall be attached to the purchase order and filed with the county clerk's copy of the purchase order. Any time the lowest quote was not considered to be the lowest and best quote, the reason for this conclusion shall be recorded by the county purchasing agent and transmitted to the county clerk, or
- c. if three quotes are not available, a memorandum to the county clerk from the county purchasing agent shall describe the basis upon which a purchase is authorized. The memorandum shall state the reasons why the price for such a purchase is the lowest and best under the circumstances. The county clerk shall then attach the memorandum to the county clerk's copy of the purchase order and file both in the office of the county clerk.

1 C. After selection of a vendor, the procedure for the purchase,
2 lease-purchase, or rental of supplies, materials, road and bridge
3 construction services, equipment, and ~~information technology and~~
4 ~~telecommunication goods and services~~ used by a county shall be as
5 follows:

6 1. The county purchasing agent shall prepare a purchase order
7 in quadruplicate and submit it with a copy of the requisition to the
8 county clerk;

9 2. The county clerk shall then encumber the amount stated on
10 the purchase order and assign a sequential number to the purchase
11 order;

12 3. If there is an unencumbered balance in the appropriation
13 made for that purpose by the county excise board, the county clerk
14 shall so certify in the following form:

15 "I hereby certify that the amount of this encumbrance has been
16 entered against the designated appropriation accounts and that this
17 encumbrance is within the authorized available balance of the
18 appropriation.

19 Dated this _____ day of _____, 20__.

20 _____

21 County Clerk/Deputy

22 of _____ County-".

23 In instances where it is impossible to ascertain the exact amount of
24 the indebtedness sought to be incurred at the time of recording the

1 encumbrance, an estimated amount may be used. No purchase order
2 shall be valid unless signed by the county purchasing agent and
3 certified by the county clerk; and

4 4. The county clerk shall file the original purchase order and
5 return three copies to the county purchasing agent who shall file a
6 copy, retain a copy for the county road and bridge inventory officer
7 if the purchase order is for the purchase of equipment, supplies, or
8 materials for the construction or maintenance of roads and bridges,
9 and submit the other copy to the receiving officer of the requesting
10 department.

11 D. 1. The procedure for the purchase of supplies, materials,
12 equipment, ~~and information technology and telecommunication goods~~
13 ~~and~~ services at public auction or by sealed bid to be used by a
14 county shall be as follows:

15 a. the county purchasing agent shall prepare a purchase
16 order in quadruplicate and submit it with a copy of
17 the requisition to the county clerk,

18 b. the county clerk shall then encumber the amount stated
19 on the purchase order and assign a sequential number
20 to the purchase order,

21 c. if there is an unencumbered balance in the
22 appropriation made for that purpose by the county
23 excise board, the county clerk shall so certify in the
24 following form:

1 "I hereby certify that the amount of this encumbrance
2 has been entered against the designated appropriation
3 accounts and that this encumbrance is within the
4 authorized available balance of the appropriation.

5 Dated this _____ day of _____, 20__.

6 _____
7 County Clerk/Deputy

8 of _____ County-".

9 In instances where it is impossible to ascertain the
10 exact amount of the indebtedness sought to be incurred
11 at the time of recording the encumbrance, an estimated
12 amount may be used. No purchase order shall be valid
13 unless signed by the county purchasing agent and
14 certified by the county clerk, and

- 15 d. the county clerk shall file the original purchase
16 order and return three copies to the county purchasing
17 agent who shall file a copy, retain a copy for the
18 county road and bridge inventory officer if the
19 purchase order is for the purchase of equipment,
20 supplies, or materials for the construction or
21 maintenance of roads and bridges, and submit the other
22 copy to the receiving officer of the requesting
23 department.

1 2. The procedure for the purchase of supplies, materials, and
2 equipment at a public auction when the purchase will be made with
3 the proceeds from the sale of county property at the same public
4 auction ~~are~~ is as follows:

5 a. the purchasing agent shall cause such items being sold
6 to be appraised in the manner determined in Section
7 421.1 of this title,

8 b. the county purchasing agent shall prepare a purchase
9 order in quadruplicate and submit it with a copy of
10 the requisition to the county clerk,

11 c. the county clerk shall then encumber the amount of the
12 appraised value and any additional funds obligated by
13 the county on the purchase order and assign a
14 sequential number to the purchase order,

15 d. the county clerk shall certify that the amount of the
16 encumbrance is equal to the appraised value of the
17 item being sold plus any additional funds obligated by
18 the county. In effect, the recording of the
19 encumbrance is an estimate that is authorized by law.
20 No purchase order shall be valid unless signed by the
21 county purchasing agent and certified by the county
22 clerk,

23 e. the county clerk shall file the original purchase
24 order and return three copies to the county purchasing

1 agent who shall file a copy, retain a copy for the
2 county road and bridge inventory officer if the
3 purchase order is for the purchase of equipment,
4 supplies, or materials for the construction or
5 maintenance of roads and bridges, and submit the other
6 copy to the receiving officer of the requesting
7 department, and

8 f. a purchase shall not be bid until such time that the
9 appraised item or items are sold. Any item or items
10 purchased shall not exceed the appraised value plus
11 any additional funds obligated by the county or the
12 actual selling price of the item or items, whichever
13 is the lesser amount.

14 E. The procedure for the receipt of items shall be as follows:

15 1. A receiving officer for the requesting department shall be
16 responsible for receiving all items delivered to that department;

17 2. Upon the delivery of an item, the receiving officer shall
18 determine if a purchase order exists for the item being delivered;

19 3. If no such purchase order has been provided, the receiving
20 officer shall refuse delivery of the item;

21 4. If a purchase order is on file, the receiving officer shall
22 obtain a delivery ticket, bill of lading, or other delivery document
23 and compare it with the purchase order. If any item is back-

1 ordered, the back order and estimated date of delivery shall be
2 noted in the receiving report;

3 5. The receiving officer shall complete a receiving report in
4 quadruplicate which shall state the quantity and quality of goods
5 delivered. The receiving report form shall be prescribed by the
6 State Auditor and Inspector. The person delivering the goods shall
7 acknowledge the delivery by signature, noting the date and time;

8 6. The receiving officer shall file the original receiving
9 report and submit:

10 a. a copy of the purchase order and a copy of the
11 receiving report to the county purchasing agent, and

12 b. a copy of the receiving report with the delivery
13 documentation to the county clerk;

14 7. The county purchasing agent shall file a copy of the
15 purchase order and a copy of the receiving report;

16 8. Upon receipt of the original receiving report and the
17 delivery documentation, the county clerk shall maintain a file until
18 such time as an invoice is received from the vendor;

19 9. The invoice shall state the name and address of the vendor
20 and must be sufficiently itemized to clearly describe each item
21 purchased, the unit price when applicable, the number or volume of
22 each item purchased, the total price, the total purchase price, and
23 the date of the purchase;

24

1 10. Upon receipt of an invoice, the county clerk shall compare
2 the following documents:

- 3 a. requisition,
- 4 b. purchase order,
- 5 c. invoice with noncollusion affidavit as required by
6 law,
- 7 d. receiving report, and
- 8 e. delivery document.

9 The documents shall be available for public inspection during
10 regular business hours; and

11 11. If the documents conform as to the quantity and quality of
12 the items, the county clerk shall prepare a warrant for payment
13 according to procedures provided for by law.

14 F. The following procedures are for the processing of purchase
15 orders:

16 1. The purchasing agent shall be allowed up to three (3) days
17 to process purchase orders to be presented to the board of county
18 commissioners for consideration and payment. Nothing herein shall
19 prevent the purchasing agent from processing or the board of county
20 commissioners from consideration and payment of utilities, travel
21 claims, and payroll claims;

22 2. The board of county commissioners shall consider the
23 purchase orders so presented and act upon the purchase orders, by
24 allowing in full or in part or by holding for further information or

1 disallowing the same. The disposition of purchase orders shall be
2 indicated by the board of county commissioners, showing the amounts
3 allowed or disallowed, and shall be signed by at least two members
4 of the board of county commissioners. Any claim held over for
5 further information shall be acted upon by allowing or disallowing
6 same at any future meeting of the board held within seventy-five
7 (75) days from the date of filing of the purchase order. Any
8 purchase order not acted upon within the seventy-five (75) days from
9 the date of filing shall be deemed to have been disallowed, but such
10 disallowance shall not prevent the refiling of the purchase order at
11 the proper time; and

12 3. Whenever any allowance, either in whole or in part, is made
13 upon any purchase order presented to the board of county
14 commissioners and is accepted by the person making the claim, such
15 allowance shall be a full settlement of the entire purchase order
16 and provided that the cashing of warrant shall be considered as
17 acceptance by the claimant.

18 G. The procedure upon consumption or disposal of supplies,
19 materials, or equipment shall be as follows:

20 1. For consumable road or bridge items or materials, a
21 quarterly report of the road and bridge projects completed during
22 such period shall be prepared and kept on file by the consuming
23 department. The quarterly report may be prepared and kept
24 electronically by the consuming department. The report shall

1 contain a record of the date, the place, and the purpose for the use
2 of the road or bridge items or materials. For purposes of
3 identifying county bridges, the board of county commissioners shall
4 number each bridge subject to its jurisdiction; and

5 2. For disposal of all equipment and information technology and
6 telecommunication goods which originally cost more than Five Hundred
7 Dollars (\$500.00), resolution of disposal shall be submitted by the
8 officer on a form prescribed by the Office of the State Auditor and
9 ~~Inspector's Office~~ Inspector to the board of county commissioners.
10 The approval of the resolution of disposal shall be entered into the
11 minutes of the board.

12 H. Inventory forms and reports shall be retained for not less
13 than two (2) years after all audit requirements for the state and
14 federal government have been fulfilled and after any pending
15 litigation involving the forms and reports has been resolved.

16 I. The procedures provided for in this section shall not apply
17 when a county officer certifies that an emergency exists requiring
18 an immediate expenditure of funds. Such an expenditure of funds
19 shall not exceed Five Thousand Dollars (\$5,000.00). The county
20 officer shall give the county purchasing agent a written explanation
21 of the emergency. The county purchasing agent shall attach the
22 written explanation to the purchase order. The purchases shall be
23 paid by attaching a properly itemized invoice, as described in this
24 section, to a purchase order which has been prepared by the county

1 purchasing agent and submitting them to the county clerk for filing,
2 encumbering, and consideration for payment by the board of county
3 commissioners.

4 J. The county purchasing agent may authorize county purchasing
5 officers to make acquisitions through the state purchase card
6 program as authorized by the State Purchasing Director in accordance
7 with Section 85.5 of Title 74 of the Oklahoma Statutes and defined
8 in Section 85.2 of Title 74 of the Oklahoma Statutes. ~~Purchase~~
9 ~~cardholders~~ A purchase cardholder shall sign a purchase card
10 agreement prior to becoming a cardholder and attend purchase card
11 procedure training as required by the State Purchasing Director.
12 Complete descriptions of purchases made by county government
13 entities shall be published ~~through the state transparency portal~~
14 ~~pursuant to Section 85.33B of Title 74 of the Oklahoma Statutes, and~~
15 as warrants required to be published pursuant to Sections 444 and
16 445 of this title.

17 K. Nothing in this section shall prohibit counties from
18 providing material and/or services bids on the twelve-month bid list
19 to all road and bridge projects and contracts. All non-road and
20 bridge related construction contracts shall refer to subsection A of
21 Section 103 of Title 61 of the Oklahoma Statutes.

22 SECTION 3. This act shall become effective November 1, 2025.

23 COMMITTEE REPORT BY: COMMITTEE ON LOCAL AND COUNTY GOVERNMENT
24 February 11, 2025 - DO PASS AS AMENDED